

CV 13

7173

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
CLERK

2013 DEC 17 AM 10:37

-----X
REGINALD JOHNSON, and
NICOLE AGOSTINI,

Plaintiffs, **ROSS, J.**
SCANLON, M.J.

U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

-against-

COMPLAINT

CITY OF NEW YORK, ROBERT MAYER,
VINCENZO DEMARTINO, DAVID
GRIECO, and JOHN DOES 2-4,

Defendants.

**PLAINTIFF DEMANDS
A TRIAL BY JURY**

-----X
Plaintiffs Reginald Johnson and Nicole Agostini, by their attorneys, Lumer &
Neville, as and for their Complaint, hereby alleges as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned, plaintiff Reginald Johnson was an adult male and a resident of Kings County in the State of New York.
2. At all times hereinafter mentioned, plaintiff Nicole Agostini was an adult female and a resident of Kings County in the State of New York.
3. At all relevant times hereinafter mentioned, defendant City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
4. At all relevant times hereinafter mentioned, defendant Robert Mayer,

whose Shield Number is 18638, was employed by the City of New York as a member of the NYPD. Mayer is sued herein in his official and individual capacities.

5. At all relevant times hereinafter mentioned, defendant David Grieco, whose Shield and Tax Numbers are not presently known, was employed by the City of New York as a member of the NYPD. Grieco is sued herein in his official and individual capacities.

6. At all relevant times hereinafter mentioned, defendant Vincenzo DeMartino, whose Shield Number is 19954, was employed by the City of New York as a member of the NYPD. DeMartino is sued herein in his official and individual capacities.

7. At all relevant times hereinafter mentioned, defendants John Does 2-4, whose real identities are not presently known to plaintiff, were employed by the City of New York as members of the NYPD. The Doe defendants are sued herein in their official and individual capacities.

8. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

9. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq., in the Eastern District of New York, where the plaintiff and defendant City of New York reside, and where the majority of the actions complained of herein occurred.

10. That plaintiff Johnson timely served a Notice of Claim on the municipal defendant and complied with all conditions precedent to commencing an action under law.

11. At least thirty days have elapsed since service of plaintiff Johnson's Notice of Claim and adjustment and payment thereof has been neglected or refused.

12. That the within action has been initiated within one year and ninety days of the happening of the events of which plaintiff Johnson complains.

RELEVANT FACTS

13. At all relevant times herein, the individual defendants were assigned to the NYPD's anti-crime unit at the 75 precinct ("75 ACU").

14. As early as July 2011, if not earlier, the NYPD's Internal Affairs Bureau had received complaints about unlawful conduct committed by defendants Mayer and Grieco, as well as other members of the small 75 ACU. According to an article in the New York Daily News, dated July 22, 2013, they received numerous complaint concerning defendant Mayer and other members of this unit that alleged that these officers, in part, fabricated evidence to justify bad arrests, conducted illegal apartment searches, and stole jewelry and money from civilians.

15. In addition, multiple lawsuits were filed against Mayer, Grieco, and other members of the 75 ACU, prior to November 23, 2012, alleging that members of the 75 ACU were deliberately violating the constitutional rights of various people whom they were arresting.

16. The municipal defendant was on notice since, at least, mid-2011, that the officers assigned to the 75 ACU were repeatedly engaging in unlawful and

unconstitutional conduct, including making unlawful and warrantless entries in residential apartments and private homes and fabricating evidence.

17. Despite this notice, the municipal defendant took no action to curb or limit the 75 ACU's unlawful conduct or to otherwise bring the 75 ACU officers to heel. Instead, the supervising officers, beginning at the precinct level, through the patrol borough and more senior commands, chose to allow the 75 ACU officers to continue operating without any monitoring, discipline, or additional supervision.

18. In sum, the municipal defendant, having learned no later than mid-2011 that the 75 ACU was engaged in a pattern and practice of systemic constitutional violations, took no action to prevent further abuses from continuing, and in so doing, condoned, adopted, and approved this pattern and practice.

19. On November 23, 2012, at or about 6:00 p.m., plaintiffs were in their home, an apartment in Brooklyn, New York. The plaintiffs were eating dinner, when, without warning the front door to their apartment was kicked in by the defendants.

20. Nobody other than plaintiffs, lived in the premises, and nobody other than plaintiffs were present at the time.

21. The individual defendants, guns drawn, entered the apartment and immediately seized and handcuffed both plaintiffs.

22. The defendants did not possess a warrant permitting entry into the Premises and no warrant has ever been produced.

23. There were no exigent circumstances permitting entry into the

Premises, nor would it be reasonable for the defendants to believe that any exigency existed.

24. Nobody consented to the defendants' entry into the Premises, nor would it be reasonable for the defendants to believe that any consent had been given.

25. The individual defendants then searched the apartment, asking plaintiffs if they had any guns in the house.

26. There were no guns in the house, nor was there any narcotics inside the house or in the possession of either plaintiff.

27. Plaintiffs then transported to the 75 precinct station house in handcuffs, where their arrests were processed.

28. At no time did defendants have sufficient legal cause to arrest and imprison plaintiff, nor was it reasonable for defendants to believe such cause existed.

29. While at the 75 precinct, the individual defendants told plaintiff Johnson that he and Agostini were being arrested for narcotics possession.

30. The defendants knew at the time that they had not recovered any narcotics from inside the home or in the possession of either plaintiff.

31. Notwithstanding their knowledge that no basis existed to arrest either plaintiff, the defendants told Johnson that if he did not confess to possessing the drugs, they would charge Agostini with possession.

32. Plaintiff Johnson knew that he did not possess the narcotics. He also knew that the defendants were deliberately lying about finding narcotics. He further understood that they would lie to the Kings County District Attorney ("KCDA") to persuade

the KCDA to charge Agostini criminally if he did not sign the false confession.

33. Because of this improper, coercive pressure, plaintiff eventually gave in and signed a statement under duress in which he said, in sum, that everything the cops found was his, not Nicole Agostini's.

34. Agostini was released from custody sometime thereafter. Plaintiff was kept in custody, and eventually sent to Kings County Central Booking.

35. While plaintiff was were imprisoned by the defendants, defendant DeMartino completed arrest paperwork in which he expressly claimed that plaintiff had committed the offenses of criminal possession of heroin and marijuana, and that these charges were based on defendant Mayer's statement that Mayer observed plaintiff drop two bags out of his rear window and that Mayer found heroin and marijuana in the bags.

36. The individual defendants further told the KCDA just after the arrest of plaintiffs that they were conducting an investigation in the building when Greco and DeMartino knocked on plaintiffs' first-floor apartment door. Mayer told the KCDA that he then observed Johnson throw two bags out of the rear window and then attempt to climb out of the window. The defendants further told the KCDA that Agostini then opened the door and allowed the defendants to enter the apartment.

37. All of these statements were materially false. Nobody knocked on plaintiffs' front door. Rather, the defendants, without warning, kicked it in. While Mayer may have stationed in a backyard, he could not observe Johnson throw two bags containing narcotics out of the window because Johnson did not throw anything out of the window and

because Johnson did not possess any narcotics.

38. The defendants forwarded these false allegations to the KCDA in order to justify the arrest and to persuade the QCDA to commence the plaintiff's criminal prosecution.

39. The defendants knew and understood that the KCDA, in evaluating whether to commence a criminal prosecution against the plaintiff, was relying on the truthfulness of their statements, claims, and was assuming that all of the defendants' factual statements were truthful in all material respects.

40. As a direct result of these allegations by the defendants' plaintiff Johnson was criminally charged by the KCDA under 2012KN094209 with multiple counts of criminal possession of heroin and marijuana.

41. The criminal court set bail and plaintiff Johnson sent to Rikers Island, where he was held in defendants' custody by the municipal defendant's Department of Corrections.

42. The individual defendants continued to maintain this fabricated version of events, causing the KCDA to present the criminal case against plaintiff Johnson to the Grand Jury, which resulted in the issuance of Indictment 10099-2012.

43. On or about December 14, 2012, plaintiff was able to post bail and was finally released from defendants' custody.

44. Based entirely on the fabricated version of events provided by the defendants, the KCDA continued to maintain the criminal prosecution against plaintiff,

requiring him to return to court on multiple occasions.

45. On or about July 22, 2013, the New York Daily News published an article detailing some of the prior allegations of misconduct by members of the 75 ACU, including Mayer and Grieco.

46. It appears that it was only because of this article that the KCDA learned that the individual defendants had been previously accused of and were the subject of an internal affairs probe for making unlawful entries into apartments, fabricating evidence, and outright theft.

47. The KCDA then sent a letter to plaintiff Johnson's criminal defense counsel advising of the internal affairs investigation.

48. On September 16, 2013, the KCDA moved to dismiss all of the criminal charges pending against plaintiff Johnson and the case was terminated in his favor.

49. From the date of the arrest through the September 2013 dismissal of the criminal prosecution, the individual defendants continued to maintain their fabricated story. At no time did any of the individual defendants attempt to modify their prior statements to their supervisors or to the KCDA concerning the circumstances surrounding the arrest of the plaintiffs.

50. At no time did any of the individual defendants make any effort to intervene to prevent any of the other defendants from violating either plaintiff's constitutional rights. None of the defendants sought to protect the plaintiffs from being falsely arrested, nor did any of the defendants take any steps whatsoever to intervene in their

fellow officers' fabrication of evidence or malicious prosecution of plaintiff Johnson.

51. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

52. Plaintiffs repeat the allegations contained in paragraphs "1" through "51" above as though stated fully herein.

53. Defendants willfully entered and searched the plaintiffs' residence without a warrant, without exigency, and without consent.

54. By so doing the individual defendants, individually and collectively, subjected the plaintiffs to unlawful searches of person and property, and thereby violated, and aided and abetted in the violation of plaintiffs' rights under the Fourth Amendment of the United States Constitution.

55. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, the violation the deprivation of liberty, and the loss of their constitutional rights.

SECOND CAUSE OF ACTION

56. Plaintiffs repeat the allegations contained in paragraphs "1" through "55" above as though stated fully herein.

57. Defendants willfully entered and searched the plaintiffs' residence without a warrant, without exigency, and without consent.

58. By so doing the individual defendants, individually and collectively, subjected the plaintiffs to an unlawful physical seizures of their person, falsely arrested and imprisoned the plaintiffs, and thereby violated, and aided and abetted in the violation of plaintiffs' rights under the Fourth Amendment of the United States Constitution.

59. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

THIRD CAUSE OF ACTION

60. Plaintiff Reginald Johnson repeats the allegations contained in paragraphs "1" through "59" above as though stated fully herein.

61. Defendants deliberately fabricated evidence against plaintiff Johnson by lying about the circumstances of his arrest, including, but not limited to, lying about how they entered the plaintiff's residence, lying when they claimed that he possessed narcotics, lying when they claimed that he threw the narcotics out of his rear window, and coercing him into signing a false confession that they knew to be false at that time that he signed it.

62. The defendants forwarded these false statements to the KCDA, either by transmitting them in written form or by making the statements orally, or a combination of both, immediately following the arrest of Reginald Johnson.

63. The defendants continued to maintain this fabricated story against plaintiff throughout the duration of his criminal prosecution. At no time did they ever correct or admit to any of their false statements, nor did any of the defendants make any attempt to intervene by informing the KCDA or supervisory personnel at the NYPD of the fabrications by his fellow officers.

64. As a result of the fabricated evidence, the plaintiff was criminally prosecuted, held in jail for a number of weeks, and deprived of his liberty.

65. By so doing the individual defendants, individually and collectively, denied plaintiff Johnson a fair trial, and thereby violated, and aided and abetted in the violation of plaintiff's rights under the Fourth and Fourteenth Amendment of the United States Constitution.

66. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

FOURTH CAUSE OF ACTION

67. Plaintiff Reginald Johnson repeats the allegations contained in paragraphs "1" through "66" above as though stated fully herein.

68. Defendants willfully, deliberately, and maliciously caused the initiation of plaintiff Johnson's criminal prosecution by presenting fabricated evidence to the KCDA, and then continuing to maintain this false narrative until the case was eventually dismissed in

plaintiff Johnson's favor.

69. By so doing, the individual defendants, individually and collectively, subjected the plaintiff to malicious prosecution and thereby violated and aided and abetted in the violation of plaintiff's rights under the Fourth Amendment of the United States Constitution.

70. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

FIFTH CAUSE OF ACTION

71. Plaintiffs repeat the allegations contained in paragraphs "1" through "40" above as though stated fully herein.

72. The municipal defendant was on notice that members of the 75 ACU, including, but not limited to, defendants Mayer and Grieco, were engaged in the practice of making wholesale unlawful entries into homes and fabricating evidence.

73. Notwithstanding this notice, the municipal defendant was deliberately indifferent to the 75 ACU members' repeated violation of the constitutional rights of the people of the City of New York. As set forth herein, the municipal defendant was on notice that Mayer, Grieco, and other members of the 75 ACU were falsely arresting people, fabricating evidence, entering homes unlawfully, and acting in general disregard of the United States Constitution, and took absolutely no steps to rein in or otherwise limit or prevent this

conduct.

74. The municipal defendant is therefore liable for the negligent supervision of the individual defendants, and the 75 ACU generally.

75. By reason thereof, defendants have caused the plaintiffs to be deprived of their federal constitutional rights, and to suffer loss of liberty, humiliation and embarrassment, emotional and physical suffering, and mental anguish.

SIXTH CAUSE OF ACTION

76. Plaintiff Reginald Johnson repeats the allegations contained in paragraphs "1" through "75" above as though stated fully herein.

77. The individual defendants sought to bring about plaintiff's prosecution through the deliberate fabrication of evidence, which was presented to the KCDA in order to persuade the KCDA to initiate criminal process.

78. Accordingly the individual defendants are liable to plaintiff Johnson under New York law for the denial of a fair trial and malicious prosecution.

79. The City of New York is vicariously liable to the plaintiff for the above conduct under the doctrine of respondeat superior.

80. By reason thereof, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiffs demand judgment against defendants jointly and severally as follows:

- i. on cause of action one through four, actual and punitive damages in an amount to be determined at trial;
- ii. on cause of action five, actual damages in an amount to be determined at trial;
- iii. on cause of action six, actual damages in an amount to be determined at trial; and
- iv. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- v. such other relief as the Court deems just and proper.

Dated: December 16, 2013
New York, New York

LUMER & NEVILLE
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
(212) 566-5060



Michael B. Lumer (ML-1947)